

be considered for parole—as a result of an illegally imposed death sentence”⁷ The full retrospective application of *Furman* requires the eradication of this vestige of the prior constitutional violation. If petitioner had been granted stays of execution until *Furman* was decided, there is no doubt that his sentence would have to be vacated and a life sentence imposed instead. The situation should be no different simply because the Chief Executive commuted his sentence—in effect granting a permanent stay of execution. Nullification of the no-parole provision would relieve petitioner of this unconstitutional burden and clear the way for lawful resentencing with eligibility for parole.

II

Since the majority devotes its opinion to a discussion of the scope of Presidential power, I am compelled to comment. I have no quarrel with the proposition that the source of the President’s commutation power is found in Art. II, § 2, cl. 1, of the Constitution, which authorizes the President to grant reprieves and pardons for offenses against the United States except for cases of impeachment. *Biddle v. Perovich*, 274 U. S. 480 (1927). Commutation is defined as the substitution of a lesser type of punishment for the punishment actually imposed at trial.⁸

⁷ 157 U. S. App. D. C. 263, 270, 483 F. 2d 1266, 1273 (1973) (Wright, J., dissenting).

⁸ Although pardon and commutation emanate from the same source, they represent clearly distinct forms of clemency. Whereas commutation is a substitution of a milder form of punishment, pardon is an act of public conscience that relieves the recipient of all the legal consequences of the conviction. See, e. g., *United States ex rel. Brazier v. Commissioner of Immigration*, 5 F. 2d 162 (CA2 1924); *Chapman v. Scott*, 10 F. 2d 156, 159 (Conn. 1925), aff’d, 10 F. 2d 690 (CA2), cert. denied, 270 U. S. 657 (1926); Note, Executive Clemency in Capital Cases, 39 N. Y. U. L. Rev. 136, 138 (1964);